



March 11, 2026

Wayne R. Rohde

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VIA EMAIL

Mr. Wilbur Grisham
Bureau of Trade Analysis
Federal Maritime Commission
800 North Capitol Street, NW
Washington, DC 20573

RE: **URGENT** – Request for Special Permission on behalf of
Maersk A/S, Org No. 025360

Dear Mr. Grisham:

Pursuant to 46 C.F.R. §520.14, Maersk A/S, Org. No. 025360 (“Maersk”) respectfully requests special permission to deviate from 46 C.F.R. §520.8(a) and to implement a temporary Emergency Bunker Surcharge (“EBS”) on less than thirty (30) days’ notice. The reasons for this request are set forth below.

As the Commission is aware, armed hostilities have broken out in the Middle East. Iran has effectively closed the Strait of Hormuz to vessel traffic by threatening to attack any ship that attempts to pass through the Strait. See <https://www.aljazeera.com/news/2026/3/2/iran-says-will-attack-any-ship-trying-to-pass-through-strait-of-hormuz>. As has been widely reported in the media, approximately 20% of the world’s crude oil supply normally transits the Strait of Hormuz. As a result of the shutdown, the price of crude oil and of the bunker fuel used in Maersk’s vessels has increased dramatically since the outbreak of hostilities.

This is evidenced by the price of Very Low Sulfur Fuel Oil (“VLSFO”) at the global top 20 ports as reported by shipandbunker.com. On February 6 the price was \$509/metric ton. On March 9, the price was \$929/metric ton. Maersk cannot absorb the full impact of this dramatic increase. Moreover, bunker fuel prices are likely to remain elevated and volatile given the uncertainty of the duration of hostilities and their impact on the price of oil and bunker fuel.

In order to recover some of the increased cost of bunker fuel (which was not among the costs covered by the surcharge for which Maersk sought special permission on March 4), Maersk has published an EBS as described in the customer advisory that can be viewed here: <https://www.maersk.com/news/articles/2026/03/10/emergency-bunker-surcharge-ebs->

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[global?exit=ExitIntentPopup+-+Insights+Hub](#). The EBS is published in the tariffs listed in Attachment A hereto and is scheduled to become effective April 8, 2026. However, unless the effective date of the EBS is advanced, Maersk will be unable to begin recovering the increased costs it is presently experiencing for almost a full month.

Accordingly, Maersk respectfully requests that it be granted special permission to advance the effective date of the EBS from April 8, 2026 to March 25, 2026, the date on which the charge will take effect in non-U.S. trade lanes.

The \$394 filing fee for this request has been paid electronically. The Pay.gov tracking ID is 280DQ423 and the Agency Tracking ID is 77323905703.

Thank you in advance for your favorable consideration of this request. Should you have any questions or require any further information, please do not hesitate to contact the undersigned.

Sincerely,

COZEN O'CONNOR

A handwritten signature in black ink, appearing to read "Wayne Rohde", written in a cursive style.

By: Wayne Rohde

WRR

Enclosure

ATTACHMENT A TO REQUEST FOR SPECIAL PERMISSION

<u>Tariff</u>	<u>Tariff Name</u>
MAEU-OT-7721828	B1C3N_CAM_CAR_WCSA-EUR_MESA_USD
MAEU-OT-7714201	B1C3S_MESA_EUR-CAM_CAR_WCSA_USD
MAEU-OT-7558171	B2NC1W_CAM_CAR_W_SAM-Far_East_USD
MAEU-OT-8198938	B2SC1E_Far_East-CAM_CAR_W_SAM_USD
MAEU-OT-7687313	M1M2E_North_America-MED_USD
MAEU-OT-7763075	M1M2W_MED-North_America_USD
MAEU-OT-7694742	M3M4E_North_America-Middle_East_Asia_USD
MAEU-OT-7715680	M3M4W_Middle_East_Asia-North_America_USD
MAEU-OT-8487558	N2N_Oceania-Far_East_Indian_Subcontinent_USD
MAEU-OT-8483251	N2S_Far_East_Indian_Subcontinent-Oceania_USD
MAEU-OT-7714659	O1O2N_Oceania-Americas_USD
MAEU-OT-7685812	O1O2S_CAM_CAR_W_SAM_North_America-Oceania_USD
MAEU-OT-8225751	O3E_Intra_Oceania_USD
MAEU-OT-8200535	O4N_Oceania-Europe_Africa_Red_Sea_Middle_East_USD
MAEU-OT-8478734	O4S_Europe_Middle_East_Red_Sea-Oceania_USD
MAEU-OT-8202587	P1P2P4E_Far_East-North_America_USD
MAEU-OT-7564976	P1P2P4W_North_America-Far_East_USD
MAEU-OT-7707420	S1AS_North_America_W_SAM_CAM_CAR-SAF_USD
MAEU-OT-7644486	S1SA_SAF-North_America_W_SAM_CAM_CAR_USD
MAEU-OT-8211091	S2E_SAF-Far_East_Oceania_USD
MAEU-OT-7691829	T1T2E_North_America-North_Europe_USD
MAEU-OT-7707781	T1T2W_North_Europe-North_America_USD
MAEU-OT-8486461	W1WF_West_Africa-Far_East_Oceania_USD
MAEU-OT-7756520	W4AW_North_America_W_SAM_CAM_CAR-West_Africa_USD
MAEU-OT-8143621	W4WA_West_Africa-North_America_W_SAM_CAM_CAR_USD
MAEU-OT-8143363	X4SF_E_SAM-Far_East_SAF_IOI_Oceania_USD
MAEU-OT-7713509	Z1AE_Americas-East_Africa_IOI_USD
MAEU-OT-7627297	Z1EA_East_Africa_IOI-Americas_USD
MAEU-OT-8486358	Z2EF_East_Africa-Far_East_Oceania_USD
MAEU-OT-577007894	UN_ECSCA TO CAM_CAR & WCSA_USD
MAEU-OT-577332724	US_CAM_CAR AND WCSA TO ECSCA_USD
MAEU-OT-577973435	UR_CAM_CAR AND WCSA TO CAM_CAR AND WCSA_USD
MAEU-OT-577102186	UR_CAM_CAR TO CAM_CAR_USD
MAEU-OT-577484917	UN_CAM AND CAR TO NAM_USD
MAEU-OT-577766477	US_NAM_CAM AND CAR_USD
MAEU-OT-577206238	UN_CAM_CAR AND WCSA TO NAM_USD
MAEU-OT-577372008	US_NAM TO CAM_CAR AND WCSA_USD
MAEU-OT-577561899	UR_WCSA_CAM_CAR to/from CAM_CAR_WCSA
MAEU-OT-57703509	HUH_ECSCA TO NAM_USD
MAEU-OT-57800194	HUS_NAM TO ECSCA_USD



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Maersk A/S, Org No. 025360

Dear Mr. Grisham:

On behalf of Maersk A/S, Org. No. 025360 (“Maersk”), we hereby supplement the March 11 request for special permission to deviate from 46 C.F.R. §520.8(a) and to implement a temporary Emergency Bunker Surcharge (“EBS”) on less than thirty (30) days’ notice.

As noted in the original request, the hostilities in the Middle East and the closure of the Strait of Hormuz have increased the price of both crude oil and bunker fuel. However, the impact of these events on Maersk go beyond the mere cost of fuel.

The current situation also affects where fuel is available, which suppliers have fuel available, and the type of fuel available. For example, Maersk may not be able to secure fuel in Salalah as it normally would and would therefore have to purchase fuel elsewhere. This may require working with new suppliers who will charge a premium over what Maersk would pay absent the hostilities. In addition, Maersk may have to buy more expensive blends of fuel based on availability. So while overall bunker prices in the market are a large part of what is happening, there are other factors at play that increase the cost of fuel and justify implementation of EBS on less than 30 days’ notice.

An example of the type of disruption the Middle East hostilities have on normal bunkering operations can be seen here: <https://www.joc.com/article/maersk-forced-to-ship-fuel-from-us-europe-as-asia-bunkers-start-to-run-dry-6184651>.

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We trust the foregoing will be helpful in evaluating this request.

Sincerely,

COZEN O'CONNOR

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By: Wayne Rohde

WRR

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